

BS158747 BS158747

County: los-angeles

Division: Civil Law and Motion

Department: 508

Hearing date: 2026-07-10

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Case Number: BS158747 Hearing Date: July 10, 2026 Dept: 508

Superior

Court of California

County

of Los Angeles

Department 508

INVESTMENT RETRIEVERS, INC,

Plaintiff,

vs.

MARIANNE M. SZYMANSKI,

Defendant.

Case No.:

BS158747

Hearing Date:

July

10, 2026

Hearing

Time:

10:00 a.m.

[TENTATIVE]

ORDER RE:

NOTICE OF
HEARING ON CLAIM OF EXEMPTION

Background

On October 27, 2015, Plaintiff Investment Retrievers, Inc ("Plaintiff") filed an Application for Entry of Judgment on Sister-State Judgment in this action against Defendant Marianne M. Szymanski ("Defendant").

On May 10, 2017, an Amended Judgment Based on Sister-State Judgment was entered in this action. On July 20, 2022, a Writ of Execution (Money Judgment) was issued as to the Judgment entered on May 10, 2017. The Writ of Execution states that the total amount due is \$53,821.68.

On March 30, 2026, Plaintiff filed a Notice of Hearing on Claim of Exemption, as well as a "Notice of Opposition to Claim of Exemption (Wage Garnishment)."

At the hearing on April 29, 2026, "the Court continue[d] the matter so Plaintiff can file the claim of exemption and Defendant can file a response." (Order 4/29/26, 2:25-26.)

On July 6, 2026, Defendant filed a "Claim of Exemption (Wage Garnishment)." From the document, it appears that Defendant faxed the claim on March 24, 2026.

Discussion

Pursuant to Code of Civil Procedure section 703.510, subdivision (a), "[e]xcept as otherwise provided by statute, property that has been levied upon may be claimed to be exempt as provided in this article." Pursuant to Code

of Civil Procedure section 703.520, subdivision (a), "[t]he claimant may make a claim of exemption by filing with the levying officer, either in person or by mail, a claim of exemption together with a copy of the claim." Pursuant to Code of Civil Procedure section 703.520, subdivision

(b), "[t]he claim of exemption shall be executed under oath and shall include all of the following:

(1) The

name of the claimant and the mailing address where service of a notice of opposition to the claim may be made upon the claimant.

(2) The

name and last known address of the judgment debtor if the claimant is not the judgment debtor.

(3) A

description of the property claimed to be exempt. If an exemption is claimed pursuant to Section 704.010 or 704.060, the claimant shall describe all other property of the same type, including exempt proceeds of the property of the same type, owned by the judgment debtor alone or in combination with others on the date of levy and identify the property, whether or not levied upon, to which the exemption is to be applied. If an exemption is claimed pursuant to subdivision (b) of Section 704.100, the claimant shall state the nature and amount of all other property of the same type owned by the judgment debtor or the spouse of the judgment debtor alone or in combination with others on the date of levy.

(4) A

financial statement if required by Section 703.530.

(5) A

citation of the provision of this chapter or other statute upon which the claim is based.

(6) A

statement of the facts necessary to support the claim."

As set forth above, on

July 6, 2026, Defendant filed a "Claim of Exemption (Wage Garnishment)." However, Defendant does not appear to provide a "citation of the provision of this chapter or other statute upon which the claim is

based.” ((Id.,
§ 703.520, subd. (b)(5).) Defendant also does not appear
to provide “[a] statement of the facts necessary to support the
claim.” (Code Civ. Proc., § 703.520, subd. (b)(6).)

Pursuant to Code of Civil Procedure section 703.570, subdivision
(b), “[n]ot less than 10 days prior to the hearing, the judgment
creditor shall serve a notice of the hearing and a copy of the notice of
opposition to the claim of exemption on the claimant and on the judgment
debtor, if other than the claimant. Service shall be made personally or by
mail.” On March 30, 2026, Plaintiff filed a proof of
service indicating that a notice of hearing and notice of
opposition were served on Defendant by mail on March 27,
2026. On June 17, 2026, Plaintiff also filed proof of service for the “Notice
of Ruling” from the hearing on April 29, 2026. The Notice of Ruling
demonstrates that the hearing was continued to July 10, 2026. Accordingly,
Plaintiff met the statutory service requirement.

Plaintiff’s “Notice of
Opposition to Claim of Exemption” asserts that the earnings claimed as exempt
are not exempt. (Notice of Opp., Item 4(a).) The Notice of Opposition also
provides an attachment. In it, Plaintiff asserts that “California decisional
case law allows a judgment debtor to seek an exemption or relief from
garnishment due to the amount of necessary family expenses they can claim. ‘Necessary’
expenses normally include housing costs, food, insurance, automobile costs,
etc. However, the court must consider the circumstances surrounding each
individual case—what is ‘necessary’ in some circumstances may be a luxury in
others.” (Notice of Opp., Item 5c, Attach. 6.) Plaintiff cites *J. J. MacIntyre Co. v. Duren* (1981) 118 Cal.App.3d
Supp. 16 in support.

In *J. J. MacIntyre
Co.*, the court stated that “[t]he determination of what is necessary for
the support of the judgment debtor or his family has not been subject to a
precise definition and differs with each debtor. Many things, such as
recreation, music lessons, and insurance, may be within the meaning of a
necessary for ... support. In actions on debts incurred for common necessities
of life, the judgment debtor is subject to a garnishment or levy of execution
of 25 percent of his disposable earnings or disposable earnings less 30 times
the federal minimum hourly wage, whichever is less even if necessary for the
support of himself and his family. The term common necessities of life, while

strictly construed by cases interpreting the former code provisions, means essentials commonly required by all persons for the sustenance of life, whatever their employment status and includes medical care." (J. J. MacIntyre Co. v. Duren, supra, 118 Cal.App.3d Supp. at pp. 18-19 [internal quotations and citations omitted].) Plaintiff asserts that "[i]n this case the judgment debtor has not produced any records to verify her alleged 'Necessary Expenses' and should be required to meet her burden of proof. In fact, the debtor shows net monthly income of \$3,910.21 and monthly expenses of \$3,150.00. This leaves net income balance of \$760.21. Therefore, the judgment debtor is able to make payments on this legal obligation." (Notice of Opp., Item 5c, Attach. 6.)

Under Code of Civil Procedure section 703.580, subdivision (b), "[a]t a hearing under this section, the exemption claimant has the burden of proof." Pursuant to Code of Civil Procedure section 703.580, subdivision (c), "[t]he claim of exemption is deemed controverted by the notice of opposition to the claim of exemption and both shall be received in evidence. If no other evidence is offered, the court, if satisfied that sufficient facts are shown by the claim of exemption (including the financial statement if one is required) and the notice of opposition, may make its determination thereon." Defendant must make a proper showing at the hearing that she is eligible for a claim of exemption.

Conclusion

Based on the foregoing, the Court will hear the matter and, "[a]t the conclusion of the hearing, the court shall determine by order whether or not the property is exempt in whole or in part." (Code Civ. Proc., § 703.580, subd. (d).)

Plaintiff is to provide notice of this Order.

DATED: July 10, 2026

Hon. Teresa A.
Beaudet

Judge, Los

